

24STCP02382 24STCP02382

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCP02382 Hearing Date: July 6, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCP02382

QUINN

EMANUEL URAUHART & SULLIVAN. LLP vs USTOCKTRADE SECURITIES, INC.

July

6, 2026

8:30

AM

NATURE OF PROCEEDINGS:

MOTION BY PETITIONER TO FILE UNDER SEAL.

RULING:

The Court orders the Motion
off calendar, due to substantial notice and procedure defects specified herein.

I.

BACKGROUND

On July 29, 2024, QUINN
EMANUEL URQUHART & SULLIVAN, LLP (Petitioner) filed a Petition to Confirm
Arbitration Award, against USTOCKTRADE SECURITIES, INC. (Respondent).

On June 18, 2025,
Petitioner filed another Petition.

On January 22, 2026, the
Clerk provided a notice of rejection of Entry of Default.

On May 28, 2026,
Petitioner filed a First Amended Petition.

Petitioner alleges that on
May 29, 2024, an Arbitration Award was made requiring Respondent to pay \$792,635.33
for Petitioner's fees and costs for legal services incurred in underlying
cases. Petitioner also seeks attorneys' fees in the sum of \$18,447.00, \$435 in
costs, and ten percent post-judgment interest.

On May 28, 2026,
Petitioner filed the unopposed Motion to Seal redacted portions of the
Declaration of Richard H. Doss, Esq. filed in support of the First Amended
Petition to Confirm Contractual Arbitration Award and Exhibits A and B, reportedly
lodged conditionally under seal on May 28, 2026.

II.

LEGAL STANDARD

"A document which is
protected by the lawyer-client privilege is not subject to the rule 243.1 et
seq. findings requirements." (Huffy Corp.
v. Superior Court (2003) 112 Cal.App.4th 97, 108 [citing, e.g., Cal. Rules
of Court, rule 243.1(a)(2), since renumbered 2.550(a)(2)], abrogation on other
grounds recognized by Curtis v. Superior

Court (2021) 62 Cal.App.5th 453, 471.)

“[A]

confidentiality provision in an arbitration agreement is not per se unconscionable when it is based on a legitimate commercial need (such as to protect trade secrets or proprietary information).” (Hasty v. Am. Auto. Assn. etc. (2023) 98 Cal.App.5th 1041, 1061–1062.)

Generally, courts must

find a compelling, overriding interest, prejudice absent sealing, and the lack of less-restrictive means, before ordering filed documents sealed. (McGuan v. Endovascular Technologies, Inc. (2010) 182 Cal.App.4th 974, 988 [“the protection of trade secrets is an interest that can support sealing records”]; Hurvitz v. Hoefflin (2000) 84 Cal.App.4th 1232, 1246; NBC Subsidiary (KNBC-TV), Inc. v. Superior

Court (1999) 20 Cal.4th 1178, 1208-1209, fn. 25; Champion v. Superior Court (1988) 201 Cal.App.3d 777, 787; In re Provident Credit Card Cases (2002)

96 Cal.App.4th 292, 310 [trial court decision that defendants had showed no overriding interest that overcomes the right of public access, was not abuse of discretion]; Universal City Studios v.

Superior Court (2003) 110 Cal.App.4th 1273, 1283-1284 [a confidential settlement or other confidentiality agreement cannot qualify for sealing absent a showing of a substantial probability that the party would be prejudiced such that it constitutes an overriding interest].)

“All electronic records

must be made reasonably available to the public in some form, whether in electronic or in paper form, except those that are sealed by court order or made confidential by law. (Cal. Rules of Court, rule 2.503.) (Underscore added.) “(1) If the sealed record is in electronic form, the clerk must file the court’s order, maintain the record ordered sealed in a secure manner, and clearly identify the record as sealed by court order on a specified date. [¶]

(2)

III.

ANALYSIS

The Motion is made on the

grounds that confidential documents contain information the parties designated as “Confidential,” including attorney client, privileged material and arbitration content, and the request satisfied requirements including of California Rule of

Court 2.550.

A.

Notice

“A copy of the motion or application must be served on all parties that have appeared in the case. (CRC, rule 2.551(b)(2).) A proof of service of moving documents must be filed no later than five court days before the hearing. (Cal. Rules of Court, rule 3.1300(c).) Where a moving party failed to provide sufficient notice of a hearing in accordance with California Code of Civil Procedure section 1005, the resultant order is void, absent an order shortening time. (Svistunoff v. Svistunoff (1952) 108 Cal.App.2d 638, 641.) Due-process principles require notice and an opportunity to be heard as to those having an interest in a matter. (Monarch Healthcare v. Superior Court (2000) 78 Cal.App.4th 1282, 1286.) “If a judge receives an unauthorized ex parte communication bearing upon the substance of a matter, the judge shall make provision promptly to notify the parties of the substance of the communication and provide the parties with an opportunity to respond.” (Code of Judicial Ethics, Canon 3B(7)(d).)

““The clerk’s entry of default cuts off the defendant’s right to take further affirmative steps such as filing a pleading or motion, and the defendant is not entitled to notices or service of pleadings or papers.’ ” (Sporn v. Home Depot USA, Inc. (2005) 126 Cal. App. 4th 1294, 1301. Accord, Dakota Payphone, LLC v. Alcaraz (2011) 192 Cal.App.4th 493, 502 (“upon entry of default subsequent filing of pleadings by defendant is unauthorized and void....”); Sass v. Cohen (2020) 10 Cal.5th 861, 882.)

“The deadline for filing a petition to confirm an arbitration award is four years (from the date the petitioner was served with the award). (§ 1288.).... A party may seek an order vacating or correcting an award in a standalone petition (§ 1285), and the default deadline for filing such a petition is 100 days (from the date the petitioner was served with the award). (§§ 1288, 1288.2.) A party may also seek an order vacating or correcting an award in its response to a prior-filed petition to confirm that award (§ 1285.2), and the default deadline for filing that response is 10 days (from the date the responding party is served with the petition to confirm). (§ 1290.6.).” (Darby v. Sisyphian, LLC (2023) 87 Cal.App.5th 1100, 1110, disapproved on other

grounds by Law Finance Group, LLC v. Key
(2023) 14 Cal.5th 932, 952, fn.3.)

The Proposed Order,
received May 28, 2026, states: “all parties having been given notice and an
opportunity to be heard....”

Here, the Court can find
no Proof of Service of notice of the Motion hearing given to Respondent.
Because default has not been entered yet, such notice is required.

B.
Unredacted Filing

One
prescribed procedure is for parties (1) to file a public redacted
version of a document, and (2) to lodge a complete version conditionally under
seal. (Cal. Rules of Court, rule 2.551(b)(5). Cf. Garcia v. Superior Court
(2007) 4 Cal.4th 63, 73.) “[W]hen
the court denies or denies in part the request to seal, and the submitting
party elects not to have its provisionally sealed documents become a part of
the record, the court must return the lodged documents as required by rule
2.551(b)(6).” (Regents of the Univ. of Cal. v. Superior Court (2013) 222
Cal.App.4th 383, 409.)

Petitioner has filed redacted
documentation to be sealed and offered to make a true and correct copy
available for an in camera review. (Richard H. Doss Declaration, filed 5/28/26,
Exhibit 1.)

But the same documents have
been separately filed unredacted and unsealed, the same date. Such documents
should have been lodged provisionally under seal.

Moreover, filing such
unredacted documentation has happened before, and already resulted in prior
sealing Orders. (See Richard H. Doss Declaration, filed 8/6/24,
¶ 7 (“the unredacted confidential version of the Doss Decl. ISO Petition was
inadvertently electronically filed with the motion.”); Minutes entered 11/20/24
(granting Motion to Seal); Minutes entered 8/9/24 (“Ex Parte Application For An

Order To Remove Confidential Information From The Public Record is GRANTED.”.)

C.

Proposed Order

The Proposed Order

received on May 28, 2026, incorrectly states the documents were lodged provisionally under seal, and lacks elements required. The order must state whether--in addition to the sealed records--the order itself, the register of actions, any other court records, or any other records relating to the case are to be sealed. [¶] (3) The order must state whether any person other than the court is authorized to inspect the sealed record.” (Cal. Rules of Court, rule 2.551(e)(1)-(3).)

IV.

CONCLUSION

The Court orders the matter

off calendar, due to notice and procedural defects set forth above.